

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, L.L.C.,
d/b/a COLONIAL MOBILE MANOR,

Plaintiff,

vs.

Case No. 2023-CC-

JAMES ALLEN KIRKENDALL and
ANY UNKNOWN PARTY(s) IN POSSESSION,

Defendants.

**COMPLAINT (CIVIL ACTION) SEEKING EVICTION, DAMAGES
AND OTHER RELIEF**

Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, d/b/a COLONIAL MOBILE
MANOR, sues the Defendants, JAMES ALLEN KIRKENDALL and ANY UNKNOWN
PARTY(s) IN POSSESSION, of certain premises more fully described below, and alleges:

COUNT I
ACTION FOR POSSESSION

1. This is an action for removal of a mobile home park lot tenant and possession of the real property in Manatee County, Florida, as authorized by Section 723.061(1)(a) of Florida Statutes.
2. Plaintiff is a limited liability company owning and operating a mobile home park located in Manatee County, Florida.
3. Defendant, JAMES ALLEN KIRKENDALL, is a natural person believed to own and reside in a mobile home located at 900 - 9th Avenue East, Lot #17, Palmetto, Manatee County, Florida, 34221.

4. Defendant, ANY UNKNOWN PARTY(s) IN POSSESSION, may reside on the real property located at 900 9th Avenue East, Lot #17, Palmetto, Manatee County, Florida, 34221, but if so, does without the consent of the Plaintiff.

5. Plaintiff owns, in fee simple, the real property located at 900 - 9th Avenue East, Palmetto, Florida, 34221, which has historically been known as COLONIAL MOBILE MANOR.

6. The residents of the community own their own mobile homes and lease their respective lots from Plaintiff; therefore, the landlord/tenant relationship between Plaintiff and the Defendants in this cause is governed by Florida Statutes Chapter 723.

7. According to Fla. Stat. §723.031, the residential lease of tenants including the Defendant are shall be for not less than one year. Moreover, a mobile home park owner may not evict a tenant except pursuant to Fla. Stat. §723.061.

8. Plaintiff, as landlord, leased to Defendant, JAMES ALLEN KIRKENDALL, Lot #17, of the above stated mobile home park at a monthly rental fee. A copy of the lease executed between the parties on March 31, 2021 is attached to this complaint as Exhibit "A".

9. Pursuant to Fla. Stat. 723.037(1), the Plaintiff has raised the rent, such that, for the year 2023, the monthly rent is the sum of \$721.50 plus late fees, according to the lease between the Defendant and the Plaintiff.

10. The Defendant failed to pay monthly rent for the month of July 2023, owes lot rent for previous months and late fees in the total amount of \$2,467.73.

11. Defendant, JAMES ALLEN KIRKENDALL, is in default in the rental agreement with Plaintiff by failure to pay the total sum of \$2,467.73 as of July 7, 2023.

12. On July 7, 2023, Plaintiff served on Defendants, JAMES ALLEN KIRKENDALL and ANY UNKNOWN PARTY(s) IN POSSESSION, pursuant to Fla. Stat. §723.061(4) by posting

on the premises of 900 9th Avenue East, Lot 17, Palmetto, FL 34221, a Demand for Payment of Lot Rental Amount demanding rent payment, and notified the Defendant that if he failed to timely pay the rent due, that the Plaintiff would evict the Defendant, pursuant to Fla. Stat. §723.061. A copy of this Notice is attached and marked Plaintiff's Exhibit "B".

13. On July 7, 2023, Plaintiff also served on Defendants, JAMES ALLEN KIRKENDALL and ANY UNKNOWN PARTY(s) IN POSSESSION, the Demand for Payment of Lot Rental Amount, by certified mail return receipt requested, to the last known address of the Defendant, pursuant to Fla. Stat. § 723.061(4). A copy of this Notice is attached and marked Plaintiff's Exhibit "C" with proof of certified mailing to JAMES ALLEN KIRKENDALL and ANY UNKNOWN PARTY(s) IN POSSESSION.

14. The nonpayment default has continued for more than five days after delivery of the written and posted demand to Defendants, as a result of which the Plaintiff is entitled to a judgment for eviction against the Defendants.

15. The total lot rental amounts due as of July 7, 2023, is due, which must be paid into the registry of the Court, is \$2467.23, plus \$721.50 due each month this action is pending.

16. ANY UNKNOWN PARTY(s) IN POSSESSION may reside or have an interest in Lot #17 of COLONIAL MANOR MHC HOLDINGS, LLC but said residence is without the knowledge or approval of the Plaintiff and said person(s) have no right to reside at said location.

17. Pursuant to the lease and Section 723.068 of Florida Statutes, Plaintiff is entitled to an award of attorney fees.

18. Plaintiff is entitled to the summary procedure of Section 51.011 of the Florida Statutes.

19. Plaintiff has retained the law firm of William C. Price, III, P.A., to represent it in this action and is obligated to pay its attorneys a reasonable fee for their services.

20. Pursuant to Fla. Stat. §723.084 the prevailing party in this action to evict the Defendant is entitled to recover its costs and attorney fees.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment for possession of the premises together with costs and reasonable attorney's fees against Defendants, JAMES ALLEN KIRKENDALL and ANY UNKNOWN PARTY(s) IN POSSESSION, and such other and further relief as the Court may deem proper.

COUNT II
ACTION FOR DAMAGES (RENTAL)

21. This is an action seeking less than \$8,000.00 excluding costs, interest and attorney fees.

22. Plaintiff re-alleges the facts contained within paragraphs 1 through 20 as though fully set forth herein.

23. In addition to unpaid rent, late fees, costs and a reasonable attorney fee, the Defendant JAMES ALLEN KIRKENDALL has failed to pay the sum of \$700.12 in utilities fees.

24. Defendant, JAMES ALLEN KIRKENDALL, owes the Plaintiff the sum of \$3,167.85 as of the date of filing this complaint, plus interest, costs and a reasonable attorney fee.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment against Defendant, JAMES ALLEN KIRKENDALL, for damages, costs, and attorney's fees.

PLAINTIFF'S POST-JUDGMENT PROCEDURE TO ENFORCE LANDLORD'S LIEN
FOR JUDICIAL SALE

25. Plaintiff seeks to enforce a landlord's lien pursuant to Sections 713.617, 713.77 and 45.031 of Florida Statutes in the event that the Plaintiff's claims under Counts I and II are granted, Plaintiff is awarded possession of the premises, and Defendant leaves personal possessions on the premises upon vacating 900 9th Avenue East Lot #17, Palmetto, FL 34221.

26. The Plaintiff re-alleges the facts contained within paragraphs 1 through 24 as though fully set forth herein.

27. Defendant, JAMES ALLEN KIRKENDALL, is the registered owner of a *1971 Mauve Single-wide mobile home, Unknown Make and Model, Vehicle Identification No. FF10163E, Title No. 0004440475* which is located on Lot #17 of the property leased by the Plaintiff to the Defendants.

28. If the Plaintiff is awarded The Plaintiff is entitled to a landlord's lien against said mobile home to enforce its judgment against Defendant for unpaid rent, utility bills, late fees, court costs and a reasonable attorney fee for the pursuit of this eviction and for related relief.

29. The Plaintiff claims entitlement to enforce its lien against said mobile home by judicial sale pursuant to Florida Statute §45.031. *Heilman v. Suburban Coastal Corp.*, 506 So. 2d 1088

30. Upon Plaintiff's lien being perfected, being entitled to credit toward the purchase of the mobile home in the sum representing all of Plaintiff's judgment against the Defendants, and ANY UNKNOWN PARTY(s) IN POSSESSION, it will have perfected its landlord lien against the personal property of Defendants, namely a *1971 Mauve Single-wide mobile home, Unknown Make and Model, Vehicle Identification No. FF10163E, Title No. 0004440475*, to which Plaintiff is entitled to sell to satisfy its judgment against Defendants.

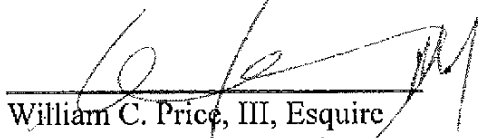
31. The Plaintiff is entitled to credit toward the purchase of said mobile home in the sum representing all of Plaintiff's judgment against the Defendant, JAMES ALLEN KIRKENDALL, all costs of this proceeding and reasonable attorney's fees.

WHEREFORE, the Plaintiff prays this Honorable Court enter an order, ordering a judicial sale of the mobile home identified herein pursuant to Florida Statute §45.031 to occur between thirty (30) and forty-five (45) days from the rendition of judgment in the above-styled cause, and to grant the Plaintiff a credit toward the purchase of the mobile home representing the unpaid

balance of the Plaintiff's judgment against Defendants, plus any costs expended by it for obtaining the judicial sale and a reasonable attorney's fee.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Complaint Seeking Eviction, Damages and Other Relief has been furnished to a private process server for service upon the Defendants, JAMES ALLEN KIRKENDALL and ANY UNKNOWN PARTY(s) IN POSSESSION, at their last known address of 900 - 9th Avenue East, Lot #17, Palmetto, Florida, 34221, on this 27th day of July, 2023.



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